8. Legal and Ethical Basics

Knowing how to hack is not enough. Doing it without permission is a crime, even if your intention is good.

Core concepts

Term	Meaning
Authorization	Written permission from the owner of the system to test it. Without it, testing is illegal.
Scope	The exact list of systems, IPs, apps and time windows you are allowed to test. Anything outside is off limits.
Rules of Engagement (RoE)	The agreed rules for the test: allowed techniques, testing hours, whether DoS or social engineering is allowed, who to contact in an emergency, how data is handled.

Ethical principles

- Always get written permission first
- Stay inside the scope, even if you spot something interesting outside it
- Do not damage systems or leak any data you come across
- Report what you find to the client in a responsible way and keep it confidential
- Practise only on your own lab or legal platforms (TryHackMe, OverTheWire, HackTheBox)

Cyber laws in India

Law	Relevance
Information Technology Act, 2000	Main cyber crime law in India
Section 43	Unauthorized access, data damage, introducing malware (civil liability and compensation)
Section 66	Dishonestly doing the acts in Section 43 is a criminal offence, up to 3 years imprisonment or fine
Section 66C / 66D	Identity theft / cheating by impersonation using a computer
Section 66F	Cyber terrorism
Section 72	Breach of confidentiality and privacy
Digital Personal Data Protection Act, 2023	Rules for handling personal data, consent, and penalties for data breaches
Bharatiya Sakshya Adhiniyam, 2023 (Section 63)	Admissibility of electronic records as evidence, with the required certificate
Bharatiya Nyaya Sanhita, 2023	Replaced the IPC, covers crimes like fraud and forgery that also apply online
CERT-In Directions, 2022	Organizations must report specified cyber incidents to CERT-In within 6 hours and keep logs for 180 days

Key points

- Even a "harmless" port scan on a system you don't own can be treated as unauthorized access.
- Good intention is not a legal defence. Authorization is.
- A signed contract, scope document and RoE protect both the tester and the client.